

Amendment No. 1 to SB0900

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 900

House Bill No. 920*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 40-11-115, is amended by deleting subsection (d) and substituting:

(d)

(1) Notwithstanding this section to the contrary, a defendant charged with the following offenses must not be released on the defendant's personal recognizance or upon execution of an unsecured bond. The magistrate shall require the defendant to post bail to reasonably ensure the defendant's appearance as required and the safety of the community, in addition to any other conditions of release imposed:

(A) A Class A felony;

(B) A Class B felony;

(C) Aggravated assault, as defined in § 39-13-102;

(D) Aggravated assault against a law enforcement officer or first responder, as defined in § 39-13-116; or

(E) Domestic assault, as defined in § 39-13-111, if the violation is a felony offense.

(2) In determining the amount of bail required for a defendant charged with an offense listed in subdivision (d)(1), there is a rebuttable presumption that bail must be set at ten thousand dollars (\$10,000) or more to reasonably ensure the appearance of the defendant as required and the safety of the community. In order to rebut the presumption established by this subdivision (d)(2), the court must make specific findings

on why such bail is not required to reasonably ensure the appearance of the defendant as required and the safety of the community. The findings must be reduced to writing and included in the court's order establishing bail.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.